

**BOUNCE HOUSE PARTICIPANT
WAIVER & RELEASE OF LIABILITY**

Date: _____

Rental Company Name: _____ (the "Company")

Address: _____

Participant Name: _____ (the "Participant")

Is Participant a Minor? Yes / No

Legal Guardian Name: _____

Description of Bounce House/Inflatables rented: _____

(including all related equipment, the above is collectively referred to as the "Bounce House").

This **Bounce House Waiver and Release of Liability** (the "Release") is made on the date above by the undersigned participant and/or their legal guardian (collectively referred to as "Participant") in consideration of being permitted to use the Bounce House. By signing this Release, Participant acknowledges and agrees to the following:

1. **Assumption of Risk**. I understand that the use of the Bounce House involves inherent risks, including, but not limited to, the risk of physical injury, disability, death, and property damage. I, on behalf of myself and any minor children for whom I am the guardian, voluntarily assume all such risks regardless of severity that I or my minor child may sustain, both known and unknown, arising from and related to the use of the Bounce House, including, but not limited to injury or harm resulting from falls, collisions, or improper use of the equipment. I hereby confirm that myself or my minor child(ren) are in good physical condition and do not suffer from any disabilities or physical conditions that places me, my child(ren), or others at risk or that would otherwise prohibit use of the Bounce House.

2. **Release of Liability.** I, on behalf of myself (and to the extent applicable, any minor children for whom I am the guardian), my heirs, assigns, personal representatives, and next of kin, hereby release, waive, discharge, and agree to hold harmless the Company and its owners, employees, agents, officers, directors, successors, assigns, and affiliates (collectively referred to as the "Released Parties") from any and all claims, demands, debts, actions, causes of action, suits, losses, liabilities, and damages (including attorney's fees and costs) of any kind and of every nature, whether known or unknown, and whether in law or equity, that I have or may hereafter have, that arise out of or relate to any injury, damage, or loss I or my minor children may suffer while using the Bounce House, whether arising from the negligence of the Released Parties or otherwise, to the fullest extent permitted by applicable law.

3. **Indemnification.** I agree to defend, indemnify, and hold harmless the Released Parties from any and all claims, demands, actions, liabilities, or costs (including reasonable attorneys' fees) arising out of or relating to my use, or the use by my minor children, of the Bounce House, including, but not limited to, claims for personal injury or property damage caused by my actions, my failure to adhere to the rules and/or safety and operating instructions, or the actions of my minor children.

4. **Supervision.** I understand that adult supervision is required at all times when the Bounce House is in use. I agree to supervise or designate a responsible adult to supervise all participants at all times. I acknowledge that failure to adequately supervise participants may result in injury or damage.

5. **Medical Conditions.** I affirm that neither I nor any of the participants I am supervising have any medical conditions, including, but not limited to, pregnancy, back, neck, or bone issues, that would make participation in the Bounce House unsafe.

6. **Bad Weather and Safety.** I understand that the Bounce House must be vacated immediately in the event of high winds, rain, or any other unsafe weather conditions. I will ensure the Bounce House is turned off, and all participants exit safely.

7. **Jurisdiction.** All matters arising out of or relating to this Release will be governed by and construed in accordance with the laws of the State of Company's address as listed above (the "State"), without giving effect to any choice or conflict of law provision or rule. Any claim or cause of action arising under this Release may be brought only in the federal and state courts located in the city and State of the Company's address as listed above, and the Participant consents to the exclusive jurisdiction of such courts. The Participant understands that this Release is intended to be as broad and inclusive as

permitted by law and that if any portion hereof is held invalid, the Participant agrees that the remainder will continue in full legal force and effect. The Participant further agrees that if this Release is not valid as such in the State, then it will be construed as a covenant not to sue.

8. **Participant Acknowledgements.** The Participant acknowledges that he/she has had a chance to read this Release. The Participant acknowledges that at the time of signing this form, he/she is of sound mind and capable of making independent decisions for himself/herself.

The Participant understands that this Release extends to claims arising on and after the execution of this Release, of any nature and kind whatsoever, known or unknown, suspected or unsuspected, except as expressly set forth above, and that the facts with respect to which this Release is given hereafter may prove to be different than the facts now known or believed.

THE PARTICIPANT HAS READ THIS RELEASE AND UNDERSTANDS THAT HE/SHE HAS GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING IT. THE PARTICIPANT IS SIGNING THIS RELEASE VOLUNTARILY.

Participant Signature: _____

Legal Guardian Signature (if minor): _____

Print Name: _____

Date: _____